



Broad-Based Black Economic Empowerment Commission

Complaint Form

(in terms of Section 13J of the Act)

Case Number

FORM BBEE 7

COMPLAINT PERSONAL DETAILS

Title	Prof ☐ Dr ☐ Rev ☐ Mr ☒ Ms ☐ Other
Full Names	Wilbur William
Surname	Mathee
Name of Entity	N/A (Filing in personal capacity)
Registration Number	N/A (Filing in personal capacity)
Complainant's Address	15 Bellevue Street, Voorbrug, Cape Town, 7100
Telephone Number	063 378 8783
Fax Number	
Email Address	info@ethichawks.co.za
Complaint is Against	Organ of State ☐ Public Entity ☐ Private Entity ☒ Sphere of Government ☐
Name of the Entity	Medscheme Holdings (Division of AfroCentric Health (Pty) Ltd) Registration Number: 1970/015014/07 Address: 37 Conrad Street, Florida North, Roodepoort, 1709

THE COMPLAINT

Description of the Complaint (Please provide nature of the complaint including a section of the Act or Codes infringed if applicable and all information which you think is important. **NB:** You may use additional paper and attach to this form)

1. ALLEGATION OF FRONTING VIA "STATUS DOWNGRADING" & MISREPRESENTATION
I allege that the Respondent is engaging in prohibited "Fronting Practices" (Window Dressing) in violation of the B-BBEE Act. The Deception: I am a Nurse Specialist (NQF 8). I was initially employed as a "Care Coordinator" but was formally promoted to "Case Manager" following an internal "Naming Convention" change to align with my specialist qualifications.
The Fronting: It is alleged that the Respondent utilized my "Case Manager" title and NQF 8 qualifications to claim Management Control and Skills Development points on their B-BBEE Scorecard.

The Reversion: However, in sworn affidavits to the CCMA (dated 10 Dec 2025), the Respondent has deliberately reverted to referring to me as a "Care Coordinator." This attempts to erase my management status to justify the lack of commensurate pay and authority, proving that my "Management" title was used solely for B-BBEE verification purposes while I was treated as junior staff in practice.

2. EXPLOITATION OF STATUTORY APPOINTMENTS (BENEFIT DIVERSION)

Despite the "Care Coordinator" claim, the Respondent appointed me as the Acting Chairperson of the Statutory Health & Safety Committee, where I managed the safety rostering of 13 staff across a 3-story facility. The Respondent relied on my high-level competence for legal OHSA compliance but refused to remunerate or recognize this senior governance role, effectively diverting the economic benefits of my labor while claiming the B-BBEE points for my demographic profile.

3. UNFAIR DISCRIMINATION & RETALIATION

I was subjected to unfair discrimination based on Gender Identity (Misgendering) and Disability (Psychiatric Condition). The Respondent utilized my private medical history to authorize an unlawful 40.47% salary deduction, weaponizing my disability to induce economic destitution after I made protected disclosures regarding a clinical system failure.

Mechanism employed to address the Complaint *(Please indicate what you have done thus far, in addressing the matter you are complaining about. Provide all the mechanisms you have used, including the date(s) you addressed your matter, the name(s) of person(s) you communicated with, the location(s), etc.)*

1. Internal Grievances: I lodged formal grievances regarding the "System Integration Gap," the "Wilma" discrimination, and the Status Downgrading. Management responded with "de-escalation" and refused to correct my job title/duties on record.

2. CCMA & Labour Court: I have referred a dispute for Constructive Dismissal. In my Replying Affidavit, I formally contested the Respondent's fraudulent use of the "Care Coordinator" title.

3. Regulatory Escalation:

CMS: The Council for Medical Schemes has referred the "Administrative Misconduct" to SANC/HPCSA.

SAHRC: The Human Rights Commission has acknowledged the "seriousness of the concerns."

Dept of Labour: Complaint lodged regarding the unlawful 40.47% deduction (BCEA S34).

4. Direct Demand: I have issued a specific demand for a Certificate of Service that accurately reflects my status as Case Manager and Acting H&S Chairperson, which the Respondent has failed to provide.

Proposed Remedy *(Please herein provide a possible remedial action (outcome) that you would like to achieve or be achieved after addressing your complain. Please note that the B-BBEE Commission may investigate the matter and might propose an amicable outcome for both the complaint and the respondent.)*

Forensic Scorecard Investigation: A specific investigation into whether the Respondent claimed B-BBEE points for my role as "Case Manager" while legally arguing I was a "Care Coordinator," constituting Fronting.

Finding of Unfair Discrimination: A ruling that the "Status Downgrading" and weaponization of disability violates the B-BBEE Act's equality clauses.

Restitution & Penalty: Recommendation for compensation for the economic harm suffered and a penalty against the Respondent for misrepresentation of B-BBEE status.

Referral to Verification Agency: A directive to the Respondent's verification agency to review their "Management Control" scores for accuracy.

Sign-off and Date

Signature

10 February 2026

Date